

THE REPUBLIC OF UGANDA
IN THE HIGH COURT OF UGANDA AT Jinja
(FAMILY DIVISION)
CIVIL SUIT NO.005 OF 2025
(ARISING OUT OF ADMINISTRATION CAUSE NO.26 OF 2023)
LionHUNTER PLAINTIFF
VERSES
1. SAMUEL DEFENDANTS
2. JOHN

PLAINT

1. The plaintiff is a female adult Ugandan of sound mind whose address of service for purpose of this suit shall M/S lionhunter920@gmail, Kampala.
2. The 1st defendant is male adult Ugandan presumed to be of sound mind and the plaintiff's advocate undertakes to take service of court process upon him.
3. The 2nd defendant is male adult Ugandan presumed to be of sound mind and the plaintiff's advocate undertakes to take service of court process upon him.
4. The plaintiff's claim against the 1st and 2nd defendant is for;
 - a) Declaration that the procedure of obtaining the letters of administration, Administration Cause No. 26 of 2023, over the late Joel's Estate to Samuel Mulimba/ 1st defendant was tainted with fraud.
 - b) An order for revocation of the letters of Administration granted to Samuel Mulimba /1st defendant in respect of the late JOEL'S estate vide ADMINISTRATION Cause No.26 of 2023.
 - c) A declaration that the sale and transfer of the land comprised at Busiro Block 336 plot 445 by the 1st defendant to the 2nd defendant was fraudulent.
 - d) An order that the transaction between the 1st and 2nd defendant was fraudulently entered into with notice of fraud.
 - e) An order that the 2nd defendant's name on the certificate of title be cancelled in respect of land comprised at Busiro Block 336 plot 445 and the deceased name be reinstated.
 - f) An order for comprehensive and true statement of account of all dealings with the estate of the late Joel Kwezi from the 1st defendant.
 - g) An order that Zaabu Kwezi/plaintiff be appointed as the administrator of the late JOEL KWEZI'S estate as fit and proper person.
 - h) An order that the 1st defendant compensate the estate of the late Joel Kwezi.
 - i) General damages
 - j) Costs of the suit
5. That the plaintiff's cause of action arose as here under;
 - a) That the Plaintiff was married to the late Joel Kwezi hence a beneficiary of the late Estate. **(A copy of the marriage certificate is attached herewith and marked "A")**
 - b) Prior to this marriage, the late Joel Kwezi had a son, Samuel Mulimba /1st defendant.

- c) The plaintiff and the late Joel Kwezi had three issues to wit ; Martha Kirabo, Happy Fortunate and Christian Peregrine Junior aged 18, 15 and 13 respectively. **(A copies of the birth certificates are hereto attached and marked ‘B’)**
 - d) The deceased Joel Kwezi died testate on 12th January 2020 and he left a will for his beneficiaries .the will had the 1st defendant as an executor and shown at the burial to the people . **(Copies of the death certificate and the last will and testament are attached hereto and marked annexure “C” & “D” respectively)**
 - e) At the time of his death Joel Kwezi left behind the following properties;
 - i. A modern residence at Lubowa, Entebbe Road
 - ii. A modern home at Wankoko, Jinja District
 - iii. land comprised in Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District
 - iv. land comprised in Busiro Block 336 Plot 324 land at Nkumba, Entebbe Road, Wakiso District
 - f) That until his death in January, 2020 the late Joel Kwezi was at all material times the registered proprietor of all the above properties and the certificates of title are the Plaintiff’s possession. **(Copies of the certificates of title are herewith attached and marked annexure “E” & “F” respectively)**
 - g) In November 2024 ,the plaintiff returned back to Uganda and wanted to organize the property /and opted to do a search of the land comprised in Busiro Block 336 Plot 445 land at Lyamutwe, and land comprised in Busiro Block 336 Plot 324 land at Nkumba, Entebbe Road, Wakiso District. To which she found that her step-son /1st defendant is registered as the adminstator on the titles. **(A copy of the search report is hereto attached and marked “G”)**
 - h) When the plaintiff back tracked the file to the High Court of Uganda at Jinja where in his petition, he stated that his the only relative of the late Joel Kwezi .
 - i) The 1st Defendant was granted Letters of Administration by the High Court vide Probate & Administration Cause No. 26 of 2023 on 1st day of December 2023. **(A copy of the Letters of Administration is hereto attached and marked annexure “H”)**
 - j) That on 25th March, 2025 unknown to the plaintiff , the 1st Defendant fraudulently procured a special certificates of title in respect of the land at Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District **(Copies of the certificates of title are hereto attached and marked “I”)**
 - k) That the 1ST defendant upon obtaining the special certificate of title land at Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District ,entered into a land sale agreement with the 2nd defendant .
 - l) The land sale agreement was tainted with fraud between the 1st and 2nd defendant since no consent of the beneficiaries were got.
 - m) That Since 1st December 2023, when the said letters of administration were granted, the 1st Defendant has failed or deliberately refused to exhibit an inventory/ or statement of accounts for the property in this Honorable Court.
6. The Plaintiff shall aver and contend that the 1st Defendant’s acquisition of the letters of administration were fraudulent.

7. The Plaintiffs shall aver and contend that the 1st Defendant's transfer of the suit land (Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District) to the 2nd defendant was fraudulent.

PARTICULARS OF FRAUD ON 1ST DEFENDANT

- a) Obtained letters of administration well knowing there was a valid will.
- b) In his petition for letters of Administration declared that he was the only surviving relative and biological son of the deceased .
- c) Concealed information and only stated the unregistered land at Bulangha and Nawaikhokhe valued at 50 million Ugx .
- d) Obtained special certificate of title in respect of the land at Busiro Block 336 plot 324 land at Lyamutwe, Busiro in Wakiso District and also land at Nkumba, Entebbe road, Busiro Block 336 Plot 324 well knowing that the title was in the possession of the plaintiff .
- e) Proceeded to enter in to a transaction with the 2nd defendant over land in Busiro Block 336 Plot 445 land at Lyamutwe without knowledge of the any other family members.
- f) lied that the deceased was buried in Bulangha village in Busoga whereas not.

PARTICULARS OF FRAUD ON THE 2ND DEFENDANT

- g) Transacted with the 1st defendant in respect of the land comprised at in Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District with notice of fraud .
- h) The 2nd defendant made a search on land comprised at in Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District prior to the registration of 1st defendant being registered as the Adminstartor of the late Joel Kwezi Estate.
- 8. The Plaintiffs shall aver and contend that as a result of the 1st defendants' actions failure to account for the rent collected, failure to pay the employees and he has sold off one of the late Joel Kwezi land to the 2nd defendant.
- 9. , they have suffered great inconvenience for hospital fees for Mr. Marko Byansi who is diagnosed with dementia and the children to the late Joel Kwezi need school fees which the Plaintiffs seek general damages.
- 10. The Plaintiff asserts that if the 1st Defendant is not restrained from managing the estate of the late Joel Kwezi, the said estate will go to a total waste and losses ,
- 11. The plaintiff contend that the late Joel Kwezi estate is worth 1,000,000,000 ugx .
- 12. The cause of action arose within the jurisdiction of this Honorable Court , High Court of Uganda in Jinja.

REASONS WHERE FOR the Plaintiffs pray for judgment against the Defendants for;

- a) Declaration that the procedure of obtaining letters of administration granted Administration Cause No. 26 of 2023, over the late Joel Kwezi's Estate to Samuel Mulimba/ 1st defendant was tainted with fraud.
- b) An Order for revocation of Letters of Administration granted to the 1st Defendant in respect of the estate of the late Joel Kwezi vide Probate & Administration Cause No. 26 of 2023.
- c) An Order compelling the Defendant to surrender to this Honorable Court the above-mentioned Letters of Administration.

- d) A declaration that all sales, transfers and transactions done in the name of the estate by the defendant or on behalf of the estate were tainted with fraud.
- e) An order that the transaction between the 1st and 2nd defendants was tainted of fraud .
- f) An order that the 2nd defendants name on the certificate of title be cancelled and instatement of the deaceased name of Joel Kwezi .
- g) An order for comprehensive and true statement of account of all dealings with the estate of the late Joel Kwezi.
- h) A grant for Letters of administration of the estate of the late Joel Kwezi be issued to the Plaintiff.
- i) A permanent injunction restraining the Defendant from undertaking any further dealings with the estate of the late Joel Kwezi.
- j) That the first defendant compensate the estate of the late Joel Kwezi
- k) General damages
- l) Costs of this suit .

DATED at KAMPALA this 17th day of March 2025.

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COUNSEL FOR THE PLAINTIFF

Drawn and Filed by:

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